



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1496: DCS; policies; procedures

BLISS FLOOR AMENDMENT

1. Prohibits foster parents, caregivers, placement facilities, and their employees, contractors, and agents from retaliating against a child in DCS care for reporting suspected violations of the child's personal rights or participating in an investigation, provided the report was made in good faith or based on a reasonable belief that the violation occurred.
2. Entitles a child in foster care or kinship foster care with the right to voluntarily participate in enrichment activities and be free of bullying or discrimination.
3. Removes an exception that previously allowed punishment if a child was proven to have maliciously or wrongfully accused a foster parent.
4. Defines the term *retaliatory action*.
5. Makes technical and conforming changes.

ADDITIONAL COW
BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1496
(Reference to House engrossed Senate bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-221, Arizona Revised Statutes, is amended to
3 read:

4 8-221. Counsel right of juvenile, parent or guardian;
5 appointment; guardian ad litem

6 A. The court shall appoint an attorney for a child in all
7 delinquency proceedings that commence with a petition or that may involve
8 ~~detention, dependency proceedings or termination of parental rights~~
9 ~~proceedings that are conducted pursuant to this title.~~ The court shall
10 appoint the CHILD'S attorney before the first hearing. The CHILD'S
11 attorney shall represent the child at all stages of the proceedings ~~and,~~
12 ~~in a dependency proceeding, through dismissal.~~

13 B. THE COURT SHALL APPOINT AN ATTORNEY FOR A CHILD IN ALL
14 PROCEEDINGS INVOLVING DEPENDENCY OR TERMINATION OF PARENTAL RIGHTS BEFORE
15 THE FIRST HEARING. THE APPOINTED ATTORNEY SHALL DETERMINE WHETHER THE
16 CHILD HAS DIMINISHED CAPACITY THAT WOULD IMPACT THE CHILD'S ABILITY TO
17 EXPRESS THE CHILD'S OWN OPINION OR TO MAKE DECISIONS FOR THE CHILD. IN
18 MAKING THIS DETERMINATION, THE APPOINTED ATTORNEY SHALL CONSULT WITH THE
19 CHILD, OTHER INDIVIDUALS WHO KNOW THE CHILD OR WHO HAVE A SIGNIFICANT
20 RELATIONSHIP WITH THE CHILD AND THE CHILD'S FAMILY OR AN AUTHORIZED
21 REPRESENTATIVE OF THE CHILD'S FAMILY.

22 C. IF AN ATTORNEY WHO IS APPOINTED PURSUANT TO SUBSECTION B OF THIS
23 SECTION DETERMINES THAT A NORMAL ATTORNEY-CLIENT RELATIONSHIP IS NOT
24 REASONABLY POSSIBLE TO MAINTAIN AND THAT THE CHILD IS NOT ABLE TO DIRECT
25 THE LEGAL REPRESENTATION DUE TO DIMINISHED CAPACITY OR THE CHILD'S
26 INABILITY TO EXPRESS THE CHILD'S OWN OPINION, THE APPOINTED ATTORNEY SHALL
27 USE SUBSTITUTED JUDGMENT TO DETERMINE WHAT THE CHILD WOULD DECIDE IF THE

1 CHILD WAS CAPABLE OF MAKING AN ADEQUATELY CONSIDERED DECISION WHEN
2 CONSIDERING WHAT IS IN THE BEST INTEREST OF THE CHILD. THE APPOINTED
3 ATTORNEY SHALL DO ALL OF THE FOLLOWING:
4 1. MAKE A GOOD FAITH EFFORT TO DETERMINE THE CHILD'S NEEDS AND
5 WISHES.
6 2. CONSULT WITH THE CHILD, OTHER INDIVIDUALS WHO KNOW THE CHILD OR
7 WHO HAVE A SIGNIFICANT RELATIONSHIP WITH THE CHILD AND THE CHILD'S FAMILY
8 OR AN AUTHORIZED REPRESENTATIVE OF THE CHILD'S FAMILY.
9 3. REPRESENT THE CHILD IN ACCORDANCE WITH THE DETERMINATION OF THE
10 CHILD'S NEEDS AND WISHES.
11 D. IF IN THE COURSE OF REPRESENTING THE CHILD AN ATTORNEY WHO IS
12 APPOINTED PURSUANT TO SUBSECTION B OF THIS SECTION REASONABLY BELIEVES
13 THAT A CHILD IS AT RISK OF SUBSTANTIAL PHYSICAL, FINANCIAL OR OTHER HARM
14 AND THAT THE CHILD DOES NOT HAVE THE CAPACITY TO ADEQUATELY ACT IN THE
15 CHILD'S OWN INTEREST, THE APPOINTED ATTORNEY SHALL DO EITHER OF THE
16 FOLLOWING:
17 1. INFORM THE COURT OF THE SUBSTANTIAL RISK OF HARM, TAKING INTO
18 ACCOUNT THE WISHES AND VALUES OF THE CHILD AND THE CHILD'S BEST INTERESTS
19 AND RESPECTING THE CHILD'S FAMILY AND SOCIAL CONNECTIONS.
20 2. REQUEST THAT THE COURT APPOINT A GUARDIAN AD LITEM FOR THE
21 CHILD.
22 ~~B.~~ E. If a parent or guardian is found to be indigent and entitled
23 to counsel, the juvenile court shall appoint an attorney to represent the
24 person or persons unless the person knowingly, intelligently and
25 voluntarily waives counsel.
26 ~~C.~~ F. Before any court appearance that may result in
27 institutionalization or mental health hospitalization of a juvenile, the
28 court shall appoint counsel for the juvenile if counsel has not been
29 previously appointed or retained by or for the juvenile.
30 ~~D.~~ G. The county board of supervisors may fix a reasonable sum to
31 be paid by the county for the services of an appointed attorney.
32 ~~E.~~ H. In a county where there is a public defender, the public
33 defender may act as attorney in either:
34 1. A delinquency or incorrigibility proceeding when requested by
35 the juvenile court.
36 2. Any other juvenile proceeding that is conducted pursuant to this
37 title if the board of supervisors authorizes the appointment of the public
38 defender.
39 ~~F.~~ I. In all juvenile court proceedings in which the dependency
40 petition includes an allegation that the juvenile is abused or neglected,
41 the court may appoint a guardian ad litem to protect the juvenile's best
42 interests. This guardian ad litem shall be an attorney. The guardian ad
43 litem is not the child's attorney.
44 ~~G.~~ J. Any guardian ad litem or attorney appointed for a juvenile
45 shall meet with the juvenile before the preliminary protective hearing, if
46 possible, or within fourteen days after the preliminary protective
47 hearing. The guardian ad litem or THE CHILD'S attorney ~~appointed for the~~

1 ~~juvenile~~ also shall meet with the juvenile before all substantive
2 hearings. On a showing of extraordinary circumstances, the judge may
3 modify this requirement for any substantive hearing.

4 Sec. 2. Section 8-468, Arizona Revised Statutes, is amended to
5 read:

6 8-468. Federal benefits; dependent children; application;
7 prohibition; accounting; notice; annual review

8 A. For all children in the care of the department of child safety,
9 the department ~~of child safety~~ shall determine whether each child is
10 receiving or eligible for benefits administered by the social security
11 administration or the veterans administration within sixty days after the
12 child enters the department's care. If the department ~~of child safety~~
13 determines that a child is eligible or may be eligible for federal
14 benefits, the department ~~of child safety~~ shall apply for the benefits on
15 behalf of the child.

16 B. If a child is already receiving benefits before entering the
17 department's care or if the department applies for benefits on behalf of
18 the child, the department shall ~~identify, in consultation with the child~~
19 ~~and the child's attorney, a representative payee in accordance with 20~~
20 ~~Code of Federal Regulations sections 404.2021 and 416.621 and shall apply~~
21 ~~to become the representative payee only if no other suitable candidate is~~
22 ~~available~~ APPLY TO SERVE AS THE REPRESENTATIVE PAYEE UNTIL SOMEONE OTHER
23 THAN THE DEPARTMENT IS APPOINTED TO SERVE AS THE REPRESENTATIVE PAYEE. If
24 the department ~~of child safety~~ is appointed to serve as the representative
25 payee, the department:

26 1. May not use the child's federal benefits, other benefits,
27 savings or assets to pay for or to reimburse the department ~~of child~~
28 ~~safety~~ or this state for any of the costs of the child's care.

29 2. May use the child's federal benefits for the child's unmet needs
30 beyond what the department ~~of child safety~~ is obligated, IS required or
31 agrees to pay.

32 3. Shall establish an appropriate account to use and conserve the
33 child's benefits in the child's best interest for current unmet needs and
34 future needs in a manner consistent with federal and state asset and
35 resource limits. The account may include any of the following:

36 (a) A special needs trust.

37 (b) A pooled special needs trust.

38 (c) An achieving a better life experience account established
39 pursuant to section 529a of the internal revenue code.

40 (d) Any other trust account determined not to interfere with social
41 security or asset limitations for any other benefit program.

42 4. In addition to the requirements ~~of~~ PRESCRIBED IN section
43 14-9115, shall provide an annual accounting as to the use, application or
44 conservation of the child's federal benefits to the child, the child's
45 attorney and the child's parents or guardians.

~~5. Shall periodically review if someone other than the department is available to apply to assume the role of representative payee and could better serve in that role in the child's best interests.~~

5. FOLLOWING THE INITIAL APPLICATION TO SERVE AS THE REPRESENTATIVE PAYEE, SHALL REMAIN THE REPRESENTATIVE PAYEE ONLY IF NO OTHER APPROPRIATE PERSON IS AVAILABLE TO SERVE AS THE REPRESENTATIVE PAYEE. WITHIN THIRTY DAYS AFTER THE APPLICATION TO SERVE AS THE REPRESENTATIVE PAYEE IS APPROVED BY THE SOCIAL SECURITY ADMINISTRATION AND AT EACH SUBSEQUENT REPORT AND REVIEW HEARING OR PERMANENCY PLANNING HEARING, THE DEPARTMENT SHALL FILE WITH THE COURT DOCUMENTATION OF THE DEPARTMENT'S EFFORTS TO IDENTIFY AN APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT AND WHO COULD BETTER SERVE AS THE REPRESENTATIVE PAYEE.

6. NOT LATER THAN AN ANNUAL SCREENING OR ON THE REQUEST OF THE CHILD OR THE CHILD'S ATTORNEY, SHALL CONSULT WITH THE PARTIES TO THE CASE TO DETERMINE IF AN APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT, AND ON APPROVAL BY THE SOCIAL SECURITY ADMINISTRATION, COULD BETTER SERVE AS THE REPRESENTATIVE PAYEE. THE DEPARTMENT SHALL ALSO CONSULT WITH THE PARTIES WHENEVER A CHANGE IN CIRCUMSTANCES OCCURS THAT MIGHT MAKE AN APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT AVAILABLE TO SERVE AS THE REPRESENTATIVE PAYEE.

C. The department ~~of child safety~~ shall notify the child, the child's parents, unless parental rights have been terminated, the child's guardian, the child's current placement and the child's attorney of any application, decision or appeal related to a child's federal benefits. In providing notice of any denial of benefits, the department shall consult with the child's attorney and appeal the denial if it is in the child's best interests.

D. The department shall annually review cases of children in the department's care to determine whether a child may have become eligible for benefits after the department's initial assessment.

E. Notwithstanding any other law, on termination of the department's responsibility for the child, the department shall release any monies remaining to the child's credit pursuant to the requirements of the funding source or, in the absence of any requirements, shall release the remaining monies to:

1. The child, if the child is at least eighteen years of age or is emancipated.

2. The person who is responsible for the child if the child is a minor and **IS** not emancipated.

Sec. 3. Section 8-514.07, Arizona Revised Statutes, is amended to read:

8-514.07. Kinship foster care; relative identification and notification; due diligence search

A. If a child is taken into temporary custody, as part of the ongoing search, the department shall use due diligence in an initial search to identify and notify adult relatives of the child and persons

1 with a significant relationship with the child within thirty days after
2 the child is taken into temporary custody.

3 B. The search to identify adult relatives of the child or persons
4 with a significant relationship with the child must include:

5 1. An interview with the child's parent.

6 2. An interview with the child.

7 3. Interviews with identified adult relatives.

8 4. Interviews with other persons who are likely to have information
9 regarding the location of adult relatives of the child or persons with a
10 significant relationship with the child.

11 5. A comprehensive search of available records that are likely to
12 help identify and locate a person being sought, including:

13 (a) Employment records.

14 (b) Vehicle registration records.

15 (c) Child support enforcement records.

16 (d) Utility accounts.

17 (e) Previous residential addresses.

18 (f) Law enforcement records.

19 (g) State department of corrections records.

20 6. Thorough inquiries by the court of the parties during case
21 hearings.

22 7. Any other means the department deems likely to identify adult
23 relatives of the child or persons with a significant relationship with the
24 child.

25 C. Within thirty days after the child is taken into temporary
26 custody and at each subsequent review and report hearing or permanency
27 planning hearing, the department shall file with the court ~~documentation~~
28 ~~AN INITIAL REPORT~~ regarding attempts made pursuant to this section or as
29 otherwise required by the court to identify and notify adult relatives of
30 the child and persons with a significant relationship with the child.
31 This ~~documentation~~ ~~INITIAL REPORT~~ shall include a detailed narrative
32 explaining the department's efforts to consider each potential placement
33 and the specific outcome. ~~THE DEPARTMENT SHALL UPDATE THE INITIAL REPORT~~
34 ~~THAT IS FILED PURSUANT TO THIS SUBSECTION AT EACH SUBSEQUENT REPORT AND~~
35 ~~REVIEW HEARING OR PERMANENCY PLANNING HEARING WITH ANY NEW INFORMATION~~
36 ~~THAT HAS BEEN OBTAINED SINCE THE FILING OF THE LAST REPORT.~~

37 D. The department shall provide notice to adult relatives of the
38 child and persons with a significant relationship with the child who are
39 identified through the search requirements of this section. The notice
40 shall do the following:

41 1. Specify that the child has been or is being removed from the
42 child's parental custody.

43 2. Explain the options an adult relative of the child or a person
44 with a significant relationship with the child has to participate in the
45 care or placement of the child.

1 3. Explain that financial assistance and other forms of support are
2 available to adult relatives of the child and persons with a significant
3 relationship with the child with whom the child is placed.

4 4. Describe the process for becoming a licensed foster parent and
5 the additional services and support that are available for children placed
6 in approved foster homes.

7 5. Require an adult relative of the child or a person with a
8 significant relationship with the child to respond within thirty days
9 after receiving notice that the child has been removed from the home.

10 E. If the child is not placed with an adult relative of the child
11 or person with a significant relationship with the child or the child is
12 placed with an adult relative or person with a significant relationship
13 with the child who is unable or unwilling to provide permanent placement
14 for the child, the department shall continue to conduct an ongoing search
15 for adult relatives of the child or persons with a significant
16 relationship with the child. ~~The department shall engage in search~~
17 ~~efforts~~

18 F. If, AFTER THE PERMANENCY HEARING HELD PURSUANT TO SECTION 8-862,
19 THE DEPARTMENT AND THE COURT DETERMINE THAT A CHILD IS PLACED WITH A
20 PROSPECTIVE PERMANENT PLACEMENT, THE DEPARTMENT MAY STOP SEARCH EFFORTS
21 UNLESS ordered by the court, a change in the child's placement occurs or a
22 party shows that the search is in the best interest of the child.

23 ~~F.~~ G. The department shall file with the court documentation of
24 both of the following:

25 1. The completed due diligence search efforts. This documentation
26 shall include:

27 (a) The names of and relevant information about adult relatives of
28 the child or persons with a significant relationship with the child.

29 (b) The steps taken by the department to locate and contact adult
30 relatives of the child or persons with a significant relationship with the
31 child.

32 (c) The responses received from adult relatives of the child or
33 persons with a significant relationship with the child.

34 (d) The dates of each attempted or completed contact with an adult
35 relative of the child or a person with a significant relationship with the
36 child.

37 (e) The reasons why an adult relative of the child or a person with
38 a significant relationship with the child was not considered for temporary
39 or permanent placement of the child.

40 2. All efforts for placement of the child through an interstate
41 compact agreement pursuant to section 8-548. This documentation shall
42 include:

43 (a) The names of adult relatives of the child or persons with a
44 significant relationship with the child who were considered for an
45 interstate placement.

46 (b) Any pending placement of the child through an interstate
47 compact agreement.

1 (c) All potential out-of-state placements outside of an interstate
2 compact agreement and the reasons such placements have not been initiated.
3 ~~G.~~ H. If an out-of-state placement option exists and the
4 department has failed to file a request with the receiving state pursuant
5 to the requirements of an interstate compact agreement pursuant to section
6 8-548, the court shall enter a finding that the department has not made a
7 due diligence search and shall order the department to file a request with
8 the receiving state pursuant to the terms of the interstate compact
9 agreement.

10 <<Sec. 4. Section 8-529, Arizona Revised Statutes, is amended to
11 read:

12 8-529. Children in foster care and kinship foster care:
13 rights

14 A. A child ~~[WHO IS]~~ in foster care ~~[and]~~ [OR] kinship foster care
15 has the following rights:

16 1. To appropriate care and treatment in the least restrictive
17 setting available that can meet the child's needs according to the best
18 judgment of the foster parent.

19 2. To live in a safe, healthy and comfortable placement where the
20 child can receive reasonable protection from harm and appropriate privacy
21 for personal needs and where the child is treated with respect.

22 3. To be placed with a relative when such placement is in the best
23 interest of the child.

24 4. To be placed with or in close proximity to the child's siblings
25 when possible and to visit and have contact with siblings and family
26 members when ~~[++]~~ [THE PLACEMENT, VISITATION OR CONTACT] is in the best
27 interest of the child.

28 5. To know why the child is in foster care and what will happen to
29 the child and to the child's family, including siblings, and case plans.

30 6. Whenever possible, to be placed with a foster family that can
31 accommodate the child's communication needs.

32 7. To be disciplined in a manner that is appropriate to the child's
33 level of maturity and not be subjected to physical discipline methods.

34 8. To attend community, school, extracurricular and religious
35 services and activities of the child's choice to the extent that it is
36 appropriate for the child, as planned and discussed with the child's
37 placement worker and caseworker and based on caregiver ability if
38 transportation is available through a responsible party.

39 9. To go to school and receive an education that fits the child's
40 age and individual needs. If remaining in the child's current school is
41 not in the child's best interest, the child has the right to be enrolled
42 in the least restrictive school available.

43 10. To training in personal care, hygiene and grooming.

44 11. To clothing that fits comfortably and is adequate to protect the
45 child against natural elements such as rain, snow, wind, cold and sun.

1 12. To have personal possessions at home and to acquire additional
2 possessions within reasonable limits, as planned and discussed with the
3 child's foster parent, placement worker and caseworker, and based on
4 caregiver ability.

5 13. To personal space, preferably in the child's foster home bedroom
6 for storing clothing and belongings.

7 14. To healthy foods in healthy portions that are appropriate for
8 the child's age.

9 15. To comply with any approved visitation plan, and to have any
10 restrictions explained to the child in a manner and level of details
11 deemed age appropriate by the foster parent in agreement with the
12 caseworker and documented in the child's record.

13 16. If the child is six years of age or older, to receive contact
14 information for the child's caseworker, attorney or advocate and to speak
15 with them in private if necessary.

16 17. To be represented by an attorney in all proceedings initiated
17 pursuant to this title.

18 18. To participate in age appropriate child's service planning and
19 permanency planning meetings and to be given a copy or summary of each
20 service plan and service plan review. The child may request someone to
21 participate on the child's behalf or to support the child in this
22 participation.

23 19. To attend the child's court hearing and speak to the judge.

24 20. To have the child's records and personal information kept
25 private and discussed only when it is about the child's care, except
26 [THAT] the foster parent shall have full access to the records to
27 determine [+f] [WHETHER] the child will be successful in the home. During
28 the foster placement, if the foster parent requests to view the record on
29 experiencing problems with the child's adjustment, the full record shall
30 be made available for viewing by the foster parent.

31 21. To receive [IMMEDIATE AND UNBIASED] medical, dental, vision and
32 mental health services and to be informed about diagnoses and treatment
33 options as is developmentally appropriate.

34 22. To be free of unnecessary or excessive medication.

35 23. To receive emotional, mental health or chemical dependency
36 treatment separately from adults who are receiving services, as planned
37 and discussed with the child's placement worker and caseworker, as is
38 financially reasonable for the foster parent.

39 24. To report a violation of personal rights specified in this
40 section without fear of [punishment,] interference, coercion, INTIMIDATION
41 or retaliation~~[.] [except that an appropriate level of punishment may be~~
42 ~~applied if the child is proven to have maliciously or wrongfully accused~~
43 ~~the foster parent.]~~ [A FOSTER PARENT, A KINSHIP CAREGIVER, A FOSTER HOME,
44 A GROUP FOSTER HOME, A GROUP HOME OR AN EMPLOYEE, CONTRACTOR OR AGENT OF A
45 HOME OR FACILITY WHERE A CHILD WHO IS IN THE CARE OF THE DEPARTMENT IS
46 PLACED MAY NOT TAKE, THREATEN OR CAUSE RETALIATORY ACTION AGAINST A CHILD
47 BECAUSE THAT CHILD REPORTS A SUSPECTED VIOLATION OF PERSONAL RIGHTS

1 PURSUANT TO THIS PARAGRAPH OR PARTICIPATED IN AN INQUIRY OR INVESTIGATION
2 OF A VIOLATION OF PERSONAL RIGHTS AND THE CHILD MADE THE REPORT OF A
3 VIOLATION OF PERSONAL RIGHTS OR PARTICIPATED IN AN INQUIRY OR
4 INVESTIGATION OF A VIOLATION OF PERSONAL RIGHTS IN GOOD FAITH OR WITH A
5 REASONABLE BELIEF THAT THE REPORT OF A VIOLATION OF PERSONAL RIGHTS WAS
6 TRUE. FOR THE PURPOSES OF THIS PARAGRAPH, "RETALIATORY ACTION":

7 (a) MEANS AN ACTION OR OMISSION THAT WOULD DETER A REASONABLE CHILD
8 OF SIMILAR AGE AND CIRCUMSTANCES FROM MAKING A REPORT OF A VIOLATION OF
9 PERSONAL RIGHTS PURSUANT TO THIS PARAGRAPH AND THAT MATERIALLY ADVERSELY
10 AFFECTS ANY OF THE FOLLOWING FOR A CHILD:

11 (i) PLACEMENT.

12 (ii) SERVICES.

13 (iii) EDUCATION.

14 (iv) MEDICAL OR BEHAVIORAL HEALTH CARE.

15 (v) PRIVILEGES.

16 (vi) VISITATION OR CONTACT.

17 (vii) ANY OTHER CONDITIONS OF PLACEMENT.

18 (b) INCLUDES:

19 (i) INITIATING, REQUESTING, RECOMMENDING OR CAUSING A DISRUPTION IN
20 PLACEMENT, TRANSFER OR CHANGE IN LEVEL OF CARE OR SUPERVISION, INCLUDING A
21 REFERRAL TO A HIGHER LEVEL OF CARE, WITHOUT DOCUMENTED, NONRETALIATORY
22 JUSTIFICATION.

23 (ii) DENYING, RESTRICTING, DELAYING OR CONDITIONING PRIVILEGES,
24 NORMAL ACTIVITIES, VISITATION OR CONTACT, RECREATION, PARTICIPATION IN
25 EDUCATION, SERVICES OR OPPORTUNITIES TO WHICH THE CHILD IS OTHERWISE
26 ENTITLED.

27 (iii) IMPOSING DISCIPLINARY OR CORRECTIVE ACTION OR MORE RESTRICTIVE
28 CONDITIONS NOT BASED ON CONTEMPORANEOUS DOCUMENTED CONDUCT THAT IS NOT
29 RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.

30 (iv) KNOWINGLY MAKING, CAUSING OR ENCOURAGING ANOTHER PERSON TO MAKE
31 A FALSE, FRAUDULENT OR MATERIALLY MISLEADING STATEMENT, INCIDENT REPORT,
32 ALLEGATION OR RECORD ABOUT THE CHILD TO RELEVANT AUTHORITIES.

33 (v) ALTERING, DESTROYING OR CONCEALING RECORDS OR EVIDENCE THAT IS
34 RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.]

35 25. To be informed in writing of the name, address, telephone number
36 and purpose of the Arizona protection and advocacy system for disability
37 assistance.

38 [26. TO VOLUNTARILY PARTICIPATE IN ENRICHMENT ACTIVITIES.

39 27. TO BE FREE OF BULLYING OR DISCRIMINATION.]

40 [26.] [28.] To understand and have a copy of the rights listed in
41 this section.

42 B. A child [WHO IS] in foster care or kinship foster care [AND] who
43 is at least fourteen years of age has the following rights:

44 1. To attend preparation for adult living classes and activities as
45 appropriate to the child's case plan, as is financially reasonable for the
46 foster parent.

1 2. To a transition plan that includes career planning and
2 assistance with enrolling in an educational or vocational job training
3 program.

4 3. To be informed of educational opportunities, including
5 information regarding assistance and funding for postsecondary and
6 vocational education.

7 4. To assistance in obtaining an independent residency when the
8 child is too old to remain in foster care from the child's caseworker,
9 attorney or advocate.

10 5. To request a court hearing for a court to determine [if]
11 [WHETHER] the child has the capacity to consent to medical care that is
12 directly related to an illness, disease, deformity or other physical
13 malady.

14 6. To receive help with obtaining a driver license, social security
15 number, birth certificate or state identification card and credit reports
16 with assistance in interpreting the reports and resolving inaccuracies in
17 the report. The foster parent shall have discretion to determine [if]
18 [WHETHER] the child is responsible and mature enough to become a licensed
19 driver.

20 7. To receive necessary personal information within thirty days
21 after leaving foster care, including the child's birth certificate,
22 immunization records and information contained in the child's education
23 portfolio and health passport.

24 8. To participate in or reenter extended foster care when the child
25 is at least eighteen and under twenty-one years of age pursuant to section
26 8-521.02.

27 C. The department shall provide information regarding a child's
28 rights pursuant to this section and assistance in understanding and
29 enforcing these rights to each child who enters foster care or kinship
30 foster care or when there is a change in the child's foster care plan.
31 The information shall also include the telephone number and email address
32 of the department, the child's assigned case manager, the department's
33 office of the ombudsman and the ombudsman-citizens aide. A copy of these
34 rights shall be posted in a conspicuous place in all foster [care] [HOMES]
35 and group [FOSTER] homes.

36 D. If a child who is in foster care or kinship foster care believes
37 that the child's rights under this section have been violated, the child
38 or the child's representative may:

39 1. File a complaint with the department, the department's office of
40 the ombudsman or the ombudsman-citizens aide pursuant to section 41-1376.
41 A formal grievance may be initiated with the ombudsman at any time.

42 2. Notify the juvenile court in the child's ongoing dependency,
43 severance or adoption proceeding, either orally or in writing, that the
44 child's rights are being violated and request appropriate equitable
45 relief. The court shall act on the notification as necessary within [its]
46 [THE COURT'S] discretion to promote the best interest of the child.

1 E. The rights provided in this section do not establish an
2 independent cause of action.>>

3 Sec. 5. Section 8-810, Arizona Revised Statutes, is amended to
4 read:

5 8-810. Missing; abducted; runaway children; notification;
6 training; audit

7 A. Immediately or within twenty-four hours after receiving a report
8 made pursuant to section 13-3620 or receiving information during the
9 course of providing services that indicates a child who is a ward of the
10 court or who is in the care of the department is missing, abducted or a
11 runaway and the child's location is unknown, the department shall notify
12 the appropriate law enforcement agency to make the record entry as
13 follows:

14 1. For an abducted child, the Arizona criminal justice information
15 system.

16 2. For an abducted, missing or runaway child, the national crime
17 information center missing person database.

18 B. Immediately or within twenty-four hours after receiving a report
19 of a missing, abducted or runaway child, the department shall do the
20 following:

21 1. Report information on the missing, abducted or runaway child to
22 the national center for missing and exploited children.

23 2. Unless it is determined by the primary investigative agency that
24 it will hinder investigation or location efforts: ~~;~~

25 (a) Contact the following persons to obtain information about the
26 child's disappearance:

27 ~~(a)~~ (i) The child's parents.

28 ~~(b)~~ (ii) The child's known relatives.

29 ~~(c)~~ (iii) The child's out-of-home caregivers.

30 ~~(d)~~ (iv) The child's attorney.

31 ~~(e)~~ (v) The child's guardian or guardian ad litem.

32 ~~(f)~~ (vi) The child's court appointed special advocate.

33 ~~(g)~~ (vii) The child's school, friends or household members or
34 other persons who may have relevant information about the circumstances
35 surrounding the child's abduction or disappearance.

36 ~~(h)~~ (viii) Any other persons known to the department who may have
37 relevant information regarding the child's location.

38 ~~3. Unless it is determined by the primary investigative agency that~~
39 ~~it will hinder investigation or location efforts;~~

40 (b) Provide a notice of disappearance in writing ~~and~~ OR
41 telephonically to the following persons:

42 ~~(a)~~ (i) The child's parents.

43 ~~(b)~~ (ii) The child's known relatives.

44 ~~(c)~~ (iii) The child's out-of-home caregivers.

45 ~~(d)~~ (iv) The child's attorney.

1 ~~(e)~~ (v) The child's guardian or guardian ad litem.
2 ~~(f)~~ (vi) The child's court appointed special advocate.
3 ~~(g)~~ (vii) A judicial officer in any judicial matter involving the
4 child.
5 ~~(h)~~ (viii) The duty assistant attorney general to initiate a
6 motion for a pickup.
7 ~~(i)~~ (ix) If the child is a member of an Indian tribe in this
8 state, the child's Indian tribe.
9 C. Immediately or within twenty-four hours after receiving a report
10 PURSUANT TO THIS SECTION, the department shall request the appropriate law
11 enforcement agency to determine if the situation meets amber alert
12 criteria or ~~silver~~ SEEK AND FIND alert criteria pursuant to section
13 41-1728. The appropriate law enforcement agency shall document its
14 response regarding amber alert or ~~silver~~ SEEK AND FIND alert criteria.
15 D. Within forty-eight hours after receiving a report of a missing,
16 abducted or runaway child, the department shall provide the local law
17 enforcement agency with, and the local law enforcement agency shall
18 provide to all local media outlets and post to social media platforms, all
19 of the following information regarding the child and, if known, the
20 child's abductor:
21 1. A complete physical description of the child and, if known, the
22 child's abductor.
23 2. The last known location of the child or, if known, the child's
24 abductor.
25 3. A description of the clothing the child or, if known, the
26 child's abductor was last known to be wearing.
27 4. A description of any vehicle that may be involved with the
28 child's disappearance.
29 5. Current photos of the child and, if available, the child's
30 abductor.
31 6. A law enforcement telephone number.
32 7. Information regarding any offered rewards.
33 E. The appropriate law enforcement agency shall update social media
34 platforms with updated information regarding the missing, abducted or
35 runaway child.
36 F. For a child who has been missing or abducted or who has been a
37 runaway for two or more years, the appropriate law enforcement agency
38 shall work, when possible, to create an age-appropriate progression image
39 of the child.
40 G. The department shall do all of the following on an ongoing basis
41 until a missing, abducted or runaway child is located or the child reaches
42 the age of majority:
43 1. Document in writing every effort the department has made to
44 locate the missing, abducted or runaway child within ten days after the
45 effort to locate the child is taken. The written document shall specify
46 the notifications and documentation sent to individuals and departments
47 pursuant to the requirements of this section.

1 2. Contact law enforcement every seven calendar days and document
2 the information provided and received.

3 3. For a child who has been missing or abducted or who has been a
4 runaway for two or more years, work with the national center for missing
5 and exploited children to create an age-progression image of the child.

6 H. The department shall immediately develop, refine, implement and
7 provide initial training to newly hired employees. A newly hired employee
8 must receive this initial training before any children are assigned to the
9 newly hired employee's caseload. The department shall conduct annual
10 training for department employees who have direct oversight of children
11 and the direct supervisors of those employees. The training shall include
12 department policies for locating missing, abducted or runaway children and
13 the requirements for ongoing efforts to locate a missing, abducted or
14 runaway child, unless it is determined by the primary investigative agency
15 that it will hinder investigation or location efforts. Monthly ongoing
16 department efforts shall include all of the following:

17 1. Continued contact with law enforcement agencies.

18 2. Continued contact with the child's parents, guardian or
19 custodian.

20 3. Continued contact with the child's known relatives.

21 4. Continued contact with current and former foster families of the
22 child.

23 5. Continued contact with the child's school.

24 6. Continued contact with known acquaintances of the child.

25 7. Continued in-person searching of locations and places where the
26 child may be found.

27 8. Continued review of any social media accounts that may be
28 associated with the child or the child's known acquaintances.

29 9. Continued efforts with law enforcement agencies in searching for
30 the child.

31 10. Continued search efforts with department field staff who have
32 access to databases that may help in the search for information or leads
33 regarding the missing, abducted or runaway child.

34 11. Referral to the department's office of child welfare
35 investigations for assistance if exigent circumstances exist.

36 12. Requesting that the appropriate law enforcement agency conduct
37 welfare checks at any location where the child may be.

38 I. Within twenty-four hours after a missing, abducted or runaway
39 child is located, the department shall do all of the following:

40 1. Inform all of the following:

41 (a) All law enforcement agencies involved in the child's case.

42 (b) The attorney general's office.

43 (c) The national center for missing and exploited children.

44 (d) Any individuals who have received notice pursuant to subsection
45 B, paragraph 3 of this section.

1 2. Have in-person contact with the child.
2 3. Obtain a medical exam for the child.
3 4. Assess the child's experiences while absent from care, including
4 screening to determine if the child is a sex trafficking victim, and
5 report to the appropriate law enforcement agency if it is determined that
6 the child is a sex trafficking victim.
7 5. Assess the appropriateness of the child returning to the child's
8 current placement.
9 6. Assess factors that contributed to the child's absence.
10 7. Determine the need for additional behavioral health services and
11 support.
12 8. Review the case to assess the primary factors that contributed
13 to the child being missing or abducted or a runaway and to the extent
14 possible and appropriate respond to those factors in current and
15 subsequent case decisions.
16 J. Within sixty days after September 14, 2024, the department shall
17 develop a checklist for department specialists. The checklist shall be
18 distributed to each caseworker to assist department specialists in
19 fulfilling the department's duties prescribed by this section. The
20 checklist shall have a mechanism to mark department duties as completed
21 within the timelines specified by this section.
22 K. Beginning ninety days after September 14, 2024, the department
23 shall provide a monthly report to the governor, the president of the
24 senate and the speaker of the house of representatives. The report shall
25 include all of the following:
26 1. The names of all current missing, abducted or runaway children.
27 The names of missing, abducted or runaway children shall be kept
28 confidential and may not be distributed outside of the monthly report.
29 2. An acknowledgement that the department made the notifications
30 prescribed by this section within the prescribed time frames. If the
31 department failed to make the notifications ~~with~~ WITHIN the prescribed
32 time frames, the department shall include a detailed explanation of the
33 reason why the notifications were not made within the prescribed time
34 frames.
35 3. The department's compliance with ongoing search efforts made to
36 locate missing, abducted or runaway children.
37 4. The department's compliance with subsection I of this section.
38 5. On the return of a runaway child to the department's care, the
39 reason why the child ran away.
40 L. Within one hundred fifty days after September 14, 2024 and on a
41 monthly basis thereafter, the department shall submit to the joint
42 legislative budget committee, the senate health and human services
43 committee and the house of representatives health and human services
44 committee, or their successor committees, a report that includes all of
45 the following:

1 1. The department's compliance with all of the requirements of this
2 section.

3 2. The number of missing, abducted and runaway children.

4 3. The number of missing, abducted and runaway children who have
5 been found.

6 4. The percentage of times the department was in compliance with
7 the requirements prescribed in subsections A, B, C and D of this section.

8 M. If the report submitted pursuant to subsection L of this section
9 shows a less than ninety-five percent compliance rate with the
10 requirements prescribed in subsection L, paragraph 4 of this section for
11 more than four consecutive or nonconsecutive months in a twelve-month
12 period, the department shall establish a missing, abducted and runaway
13 children unit within the department. The missing, abducted and runaway
14 children unit shall have at least four employees with at least one
15 employee available twenty-four hours a day. The missing, abducted and
16 runaway children unit may enter into contracts with any vendor necessary
17 to ensure the department is in compliance with this section. If the
18 missing, abducted and runaway children unit is established, the unit shall
19 submit a report to the governor, the president of the senate, the speaker
20 of the house of representatives and the joint legislative oversight
21 committee on the department of child safety established by section
22 41-1292. The report shall do all of the following:

23 1. Identify the reasons why the department is not in compliance
24 with the requirements prescribed in subsections A, B, C and D of this
25 section.

26 2. Identify the methods by which the missing, abducted and runaway
27 children unit will achieve a ninety-five percent compliance rate with the
28 requirements prescribed in subsections A, B, C and D of this section.

29 3. Include organizational changes that the department will make to
30 ensure compliance with the requirements prescribed in subsections A, B, C
31 and D of this section.

32 4. Recommend legislative changes that are necessary to ensure the
33 department's compliance with the requirements prescribed in subsections A,
34 B, C and D of this section.

35 N. The legislature may convene an oversight committee to address
36 problems and deviations from policy and procedure and recommend corrective
37 action plans. The legislature shall request an annual independent audit
38 of the department's compliance with this section. If the independent
39 audit determines that the department is not in compliance, the department
40 shall contract with a consulting firm that is licensed by this state for
41 investigative services. The consulting firm shall present recommendations
42 to the oversight committee on how to improve compliance with this section.

43 O. The legislature may convene the joint legislative oversight
44 committee on the department of child safety established by section 41-1292
45 to address concerns and deviations from policy and procedure and provide
46 recommendations. The legislature may request an annual independent audit
47 of the department's compliance with this section. If the independent

1 audit determines that the department is not in compliance, the independent
2 audit shall provide recommendations for improving the department's efforts
3 to locate missing, abducted or runaway children. If the joint legislative
4 oversight committee on the department of child safety determines that the
5 department, after the establishment of the missing, abducted and runaway
6 children unit, has failed to meet the requirements of subsection M of this
7 section for a period of more than two months, the department shall
8 contract with a consulting firm that is licensed by this state for
9 investigative services. The consulting firm shall present recommendations
10 to the joint legislative oversight committee **ON THE DEPARTMENT OF CHILD**
11 **SAFETY** on how to improve compliance with this section.

12 Sec. 6. Section 8-811, Arizona Revised Statutes, as amended by Laws
13 2024, chapter 47, section 5, is amended to read:

14 **8-811. Hearing process; definitions**

15 A. The department shall notify a person who is alleged to have
16 abused or neglected a child that the department intends to substantiate
17 the allegation in the central registry pursuant to section 8-804 and of
18 that person's right:

19 1. To receive a copy of the report containing the allegation.

20 2. To a hearing before the entry into the central registry.

21 B. The department shall provide the notice prescribed in subsection
22 A of this section by first class mail or by personal service no more than
23 fourteen days after completion of the investigation.

24 C. A request for a hearing on the proposed finding must be received
25 by the department within twenty days after the mailing or personal service
26 of the notice by the department.

27 D. The department shall not disclose any information related to the
28 investigation of the allegation except as provided in sections 8-456,
29 8-807, 8-807.01 and 13-3620.

30 E. If a request for a hearing is made pursuant to subsection C of
31 this section, the department shall conduct a review before the hearing.
32 The department shall provide an opportunity for the accused person to
33 provide written or verbal information to support the position that the
34 department should not substantiate the allegation. If the department
35 determines that ~~there is no probable cause that the accused person engaged~~
36 ~~in the alleged conduct~~ **THE PROPOSED FINDING IS NOT SUPPORTED BY A**
37 **PREPONDERANCE OF THE EVIDENCE**, the department shall amend the information
38 or finding in the report and shall notify the person and a hearing shall
39 not be held.

40 F. Notwithstanding section 41-1092.03, the notification prescribed
41 in subsection A of this section shall also state that if the department
42 does not amend the information or finding in the report as prescribed in
43 subsection E of this section within sixty days after it receives the
44 request for a hearing the person has a right to a hearing unless:

45 1. The person is a party in a pending civil, criminal or
46 administrative proceeding in which the allegations of abuse or neglect are
47 at issue.

1 2. The person is a party in a pending juvenile proceeding in which
2 the allegations of abuse or neglect are at issue.

3 3. A court or administrative law judge has made findings as to the
4 alleged abuse or neglect.

5 4. A court has found that a child is dependent or has terminated a
6 parent's rights based on an allegation of abuse or neglect.

7 G. If the court or administrative law judge in a pending proceeding
8 described in subsection F, paragraph 1 or 2 of this section does not make
9 a finding of abuse or neglect and the matter is no longer pending in that
10 forum, the person has a right to a hearing pursuant to subsection F of
11 this section.

12 H. If the court or administrative law judge in a proceeding
13 described in subsection F of this section has made a finding of abuse or
14 neglect, the finding shall be entered into the central registry as a
15 substantiated report.

16 I. If the department does not amend the information or finding in
17 the report as prescribed in subsection E of this section, the department
18 shall notify the office of administrative hearings of the request for a
19 hearing ~~no~~ NOT later than five days after completion of the review. The
20 department shall forward all records, reports and other relevant
21 information with the request for hearing within ten days. The department
22 shall redact the identity of the reporting source before transmitting the
23 information to the office of administrative hearings.

24 J. The office of administrative hearings shall hold a hearing
25 pursuant to title 41, chapter 6, article 10, with the following
26 exceptions:

27 1. A child who is the victim of or a witness to abuse or neglect is
28 not required to testify at the hearing.

29 2. A child's hearsay statement is admissible if the time, content
30 and circumstances of that statement are sufficiently indicative of its
31 reliability.

32 3. The identity of the reporting source of the abuse or neglect
33 shall not be disclosed without the permission of the reporting source.

34 4. The reporting source is not required to testify.

35 5. A written statement from the reporting source may be admitted if
36 the time, content and circumstances of that statement are sufficiently
37 indicative of its reliability.

38 6. If the person requesting the hearing fails to appear, the
39 hearing shall be vacated and a substantiated finding of abuse or neglect
40 shall be entered. On good cause shown, the hearing may be rescheduled if
41 the request is made within fifteen calendar days after the date of the
42 notice vacating the hearing for failure to appear.

43 K. On completion of the presentation of evidence, the
44 administrative law judge shall determine if ~~probable cause exists to~~
45 ~~sustain the department's finding that the parent, guardian, employee of a~~
46 ~~child welfare agency where the child was placed that was licensed by and~~
47 ~~contracted with the department at the time of the abuse or custodian~~

1 ~~abused the child or the parent, guardian or custodian neglected the child~~
2 THE PROPOSED FINDING IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE. If
3 the administrative law judge determines that ~~probable cause exists to~~
4 ~~sustain the department's finding of abuse or neglect~~ THE PROPOSED FINDING
5 IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE, the sustained finding
6 shall be entered into the central registry as a substantiated report. If
7 the administrative law judge determines that ~~probable cause does not exist~~
8 ~~to sustain the department's finding~~ THE PROPOSED FINDING IS NOT SUPPORTED
9 BY A PREPONDERANCE OF THE EVIDENCE, the administrative law judge shall
10 order the department to amend the information or finding in the report.

11 L. When the department is requested to verify pursuant to section
12 8-807, if the central registry contains a substantiated report about a
13 specific person, the department shall determine if the report was taken
14 after January 1, 1998. If the report was taken after January 1, 1998, the
15 department shall notify the requestor of the substantiated finding. If
16 the report was taken before January 1, 1998, the department shall notify
17 the person of the person's right to request an administrative hearing.
18 The department shall not send this notification if the person was a party
19 in a civil, criminal or administrative proceeding in which the allegations
20 of abuse or neglect were at issue. The provisions of this section shall
21 apply to the person's appeal.

22 M. The department shall provide the parent, guardian or custodian
23 who is the subject of the investigation and the person who reported the
24 suspected child abuse or neglect if that person is the child's parent,
25 guardian or custodian with a copy of the outcome of the investigation at
26 one of the following times:

27 1. If the report is unsubstantiated.

28 2. If ~~probable cause exists that abuse or neglect has occurred~~ THE
29 PROPOSED FINDING IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE but a
30 specific person is not identified as having abused or neglected the child.

31 3. After the time to request a hearing has lapsed pursuant to
32 subsection C of this section without the department receiving a request
33 for a hearing.

34 4. After a final administrative decision has been made pursuant to
35 section 41-1092.08.

36 N. For the purposes of this section:

37 1. "Amend the finding" means to change the finding from
38 substantiated to unsubstantiated.

39 2. "Amend the information" means to change information identifying
40 the accused of having abused or neglected a child.

41 Sec. 7. Repeal

42 Section 8-811, Arizona Revised Statutes, as amended by Laws 2024,
43 chapter 127, section 5, is repealed.

1 Sec. 8. Representation of children; report; requirements;
2 delayed repeal; definition

3 A. Each county office that employs attorneys who are appointed to
4 represent children in dependency proceedings or termination of parental
5 rights proceedings pursuant to title 8, chapter 4, Arizona Revised
6 Statutes, shall submit a report to the governor, the speaker of the house
7 of representatives and the president of the senate on or before January
8 15, 2027. The report shall be compiled by month for the period of June 1,
9 2026 through December 31, 2026 and shall include all of the following:

10 1. The number of attorneys in each county office who are
11 representing children in dependency proceedings or termination of parental
12 rights proceedings.

13 2. The average number of children who are being represented by each
14 attorney.

15 3. The range of the number of dependency or termination of parental
16 rights cases that are assigned to each county office.

17 4. The number of children who are assigned to each county office by
18 case plan goal.

19 5. The number and percentage of children who are contacted in
20 person by their appointed attorney, categorized by the age of the child.

21 6. The number and percentage of children who are contacted by
22 electronic means by their appointed attorney, categorized by the age of
23 the child and the type of electronic means that was used to contact the
24 child.

25 7. The number and percentage of children who are contacted in
26 person by another member of the child's legal team, including a social
27 worker or other appropriately trained support staff, categorized by age
28 and the position of the person who contacted the child.

29 8. The number and percentage of children who are contacted by
30 electronic means by another member of the child's legal team, including a
31 social worker or other appropriately trained support staff, categorized by
32 age, the position of the person who contacted the child and the electronic
33 means that was used to contact the child.

34 9. The number and percentage of preverbal children whose placement
35 is contacted, either in person or by electronic means, by the child's
36 appointed attorney, categorized by the means that was used to contact the
37 child's placement.

38 10. The number of preverbal children whose placement is contacted,
39 either in person or by electronic means, by another member of the child's
40 legal team, including a social worker or other appropriately trained
41 support staff, categorized by the position of the person who contacted the
42 child's placement and the means that was used to contact the child's
43 placement.

House Amendments to S.B. 1496

- 1 B. This section is repealed from and after June 30, 2027.
- 2 C. For the purposes of this section, "electronic means" includes:
- 3 1. Telephone calls.
- 4 2. Video calls.
- 5 3. Email.
- 6 4. Text messages.

- 7 Enroll and engross to conform
- 8 Amend title to conform

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